

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

June 11, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	AC 2525 Main, LLC v. City of Santa Ana 2023-01351524	<u>Petitioner AC 2525 Main LLC's Motion for Reconsideration</u> Petitioner AC 2525 Main, LLC (AC 2525) moves for reconsideration pursuant to Civil Procedure Code section 1008(a) of the court's March 26, 2026 order denying AC 2525's petition for writ of mandate. ROA 159. For the following reasons, AC 2525's motion for reconsideration is denied. AC 2525 filed the motion for reconsideration on April 14, 2026 and scheduled it for hearing on June 11, 2026. The court entered judgment on April 16, 2026. ROA 171. A motion for

reconsideration may only be considered before the entry of a judgment. *Eddy v. Sharp* (1988) 199 Cal.App.3d 858, 863 n.3; see also *Ramon v. Aerospace Corp.* (1995) 50 Cal.App.4th 1233, 1236 (“after entry of judgment, a trial court has no further power to rule on a motion for reconsideration”); *Safeco Ins. Co. v. Architectural Facades Unlimited, Inc.* (2005) 134 Cal.App.4th 1477, 1482 (“It is well settled that entry of judgment divests the trial court of authority to rule on a motion for reconsideration”). As judgment has been entered, AC 2525’s motion for reconsideration is accordingly denied.

Even if the court could consider AC 2525’s motion, however, the motion would still be denied. Section 1008(a) provides:

“When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.”

Civ. Proc. Code § 1008(a).

As an initial matter, AC 2525’s motion is not accompanied by an affidavit stating what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. The Thompson Declaration filed in support of AC 2525’s motion instead attests to various events predating the court’s March 26, 2026 order and attaches various documents that also predate the court’s order. ROA 166.

AC 2525 has also not demonstrated any new or different facts, circumstances, or law warranting reconsideration. AC 2525 asserts the administrative record was incomplete and missing “critical documentation.” Brief (ROA 166) at 6:12-13. AC 2525’s failure to identify before the writ hearing “critical documentation” it now contends the administrative record should have included—documentation that predates the writ hearing—is not a new or different fact, circumstance or law warranting reconsideration of the court’s order. Moreover, AC 2525 does not claim to have been unaware of the “critical documentation.” See *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468 (“facts of which the party seeking reconsideration was aware at the time of the original ruling are not ‘new or different’”).

AC 2525 also argues that two statutes—one enacted on January 1, 2025 and one enacted on January 1, 2026—constitute new law warranting reconsideration. Laws enacted before the writ hearing are not “new law” warranting reconsideration. If AC 2525 desired to bring either or both of these laws to the court’s attention in

		connection with the writ, AC 2525 could have done so, including by seeking leave to file a supplemental brief in advance of the writ hearing. It did not do so. AC 2525's other arguments do not purport to identify new or different facts, circumstances or law, but rather reargue AC 2525's positions and express AC 2525's disagreement with the court's ruling. <i>E.g.</i>, Brief (ROA 166) at 2:16 ("Third, the Court's focus on Petitioner's ownership interest in the Property is misguided"); Reply (ROA 175) at 5:25-26 ("The Court should reconsider its order because its mootness determination rests on an incorrect legal conclusion"). Respondent City of Santa Ana filed a surreply (ROA 177) in which it seeks sanctions against AC 2525 pursuant to Civil Procedure Code section 128.5. The City's request for sanctions is denied without prejudice to the City filing and serving a motion for sanctions pursuant to section 128.5. The City's Reply Request for Judicial Notice is denied as the document is not material to the disposition of the motion for reconsideration. Respondent City of Santa Ana to give notice.
2	Alvira v. Pampanga Food Company, Inc., et al. 2025-01484062	<u>Plaintiff Balbino Alvira's Motion for Entry of Protective Order</u> Plaintiff Balbina Alvira moves for entry of a protective order following defendants Omni Resource Solutions, LLC's (Omni) and Pampanga Food Company, Inc.'s (Pampanga) refusals to respond to plaintiff's request that defendants stipulate to entry of a protective order based on the Los Angeles County Superior Court's model protective order. Omni did not file an opposition. Pampanga filed a "limited" opposition. Plaintiff agrees in his reply with Pampanga's request that the archival provision in paragraph 21 of plaintiff's proposed protective order (ROA 164) be made reciprocal. None of Pampanga's other objections to plaintiff's proposed protective order is persuasive. There is no need to restate portions of the court's March 5, 2026 order (ROA 153) in the protective order, to set forth Pampanga's litigation positions in the protective order, or to include obvious points (e.g., the protective order is not a sealing order) in the protective order. Plaintiff's motion is granted. Plaintiff is ordered to file and serve <u>by June 18, 2026</u> a revised copy of plaintiff's proposed protective order (ROA 164) with paragraph 21 modified to be reciprocal. Pampanga's request that the court enter its competing proposed protective order (ROA 216) is denied. Plaintiff to give notice.
3	Arriola v. Harbor Distributing, LLC, et al. 2025-01502092	<u>Defendants Harbor Distributing, L.L.C. and Reyes Holdings, L.L.C.'s Motion to Stay</u> Defendants Harbor Distributing, L.L.C. and Reyes Holdings, L.L.C move to stay this class action pending resolution of two previously-filed class and representative action lawsuits (<i>Ascensao v. Harbor Distributing, L.L.C.</i>, Los Angeles County Superior Court Case No. 24STCV14911, and <i>Quinteros v. Harbor Distributing, L.L.C.</i>, San